IT is hereby notified that the Minister of Public Service, Labour and Social Welfare, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], has approved the publication of the Collective Bargaining Agreement set out in the Schedule registered in terms of section 79 of the Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE UNDERTAKING OF THE ZIMBABWE NATIONAL WATER AUTHORITY

COLLECTIVE BARGAINING AGREEMENT: ZIMBABWE NATIONAL WATER AUTHORITY UNDERTAKING (EMPLOYMENT OF YOUNG PERSONS)

Made and entered in accordance with the Labour Act [*Chapter 28:01*], as amended from time to time, between the Zimbabwe National Water Authority (herein referred to as "the employer"), of the one part and the Zimbabwe Water Trade Union (herein referred to as "the employees" or "the trade union"), of the other part, being parties to the National Employment Council for the Undertaking of the Zimbabwe National Water Authority (herein after referred to as "the Council").

Definition of terms

1.—

"child" means any person below the age of eighteen (18);

"child labour" refers to work that deprives children of their childhood, potential and dignity that is detrimental to their mental, physical, social and moral wellbeing;

"worst forms of child labour" work that is dangerous and harmful which involves slavery, exposure to serious hazards and illnesses that is likely to harm the health and safety of children;

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"hazardous work" is work which by its nature or the circumstances in which it is carried out is likely to jeopardise the health, safety, or morals of a child;

"light work" work which is not likely to jeopardise the education, health, safety, rest or the social, physical or mental development of a child.

Employment of young persons

2.—

(a) the undertaking prohibits the employment of any person under the age of sixteen (16);

(b) the minimum age of engagement as an apprentice shall be sixteen (16) years;

(c) no person below the age of eighteen (18) shall—

(i) perform hazardous work;

(ii) perform work other than as an apprentice or in conjunction with training at a vocational or technical training school;

(d) persons under the age of eighteen (18) are prohibited from performing the following—

(i) work which is likely to jeopardize or interfere with the education of the child or young person;

(ii) work involving contact with any hazardous substance, article or process;

(iii) work involving underground mining;

(iv) work that exposes a child to electrically powered tools, cutting or grinding blades;

(v) work that exposes a child to excess heat, cold, noise or whole-body vibration.

(vi) night shift.

List of hazardous work

3. The following activities shall be regarded as hazardous work—

1. Handling water treatment chemicals.
2. Pipe breakdown repairs.
3. Backwashing.
4. Desludging.
5. Excavation.
6. Pipe threading.
7. Taking samples at dam construction site.
8. Inspections at outlet works and dam embarkments.
9. Civil, mechanical and electrical repairs.
10. X-Ray tests on welded pipes.
11. Attending electrical faults.
12. Operation of concrete mixers.
13. Concrete pouring.
14. Rigging.
15. Borehole drilling.
16. Borehole casing.
17. Pipe line pressure testing.
18. Handling drilling material.
19. Borehole capacity testing.
20. Welding.
21. Workshop tools and equipment lifting.
22. Machining and grinding.
23. Night shift.
24. Sewer.

Declaration

4. This agreement shall come into operation on the date of publication.

The employer and trade union having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the agreement arrived at, and affix their signatures thereto.

Signed at Harare on this 27th day of June, 2023.

MR. S. DIMINGO,
Chairman,
National Employment Council for the Undertaking
of the Zimbabwe National Water Authority.

ENG. A. MARE,
for and on behalf of: Employer Party.

MR. P. SHOTERE,
for and on behalf of: the Employee Party.

MRS. N. N. SIMANGO,
General Secretary for the National Employment Council for the
Undertaking of the Zimbabwe National Water Authority.

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